COLORADO
MOUNTAIN COLLEGE

REQUEST FOR PROPOSAL

#1178-26P

Professional Custodial Services
Breckenridge Campus

Buyer:
CMC Purchasing Department
802 Grand Avenue / Glenwood Springs, CO 81601 / bids@coloradomtn.edu

#1125-25P Professional Custodial Services – Breckenridge

Section I: Introduction

Colorado Mountain College ("CMC") is a statutory local college district established in 1965. The district and service area cover 12,000 square miles in all or part of nine counties. CMC offers 77 certificates, 54 associate degrees and 5 bachelor's degrees.

The long-standing investment from our communities allows us to keep our quality high, our tuition affordable and our access wide open. Eleven world-class mountain locations in central Colorado enable big-school opportunities in small, personal settings. Our unusually strong local partnerships create rich experiences for real-world learning and careers. The result? Proven student success that makes Colorado Mountain College a choice that's uniquely smart. For additional information about CMC, please go to www.coloradomtn.edu.

CMC reserves the right to make multiple awards resulting from this RFP or to award no contract at all.

CMC uses the Rocky Mountain E-Purchasing System ("BidNet") to post solicitations and any supporting or additional information, including Addenda, Bid Sheet, and awards. Proposals must be submitted prior to close on BidNet. CMC cannot accept a response that did not come through the right channel on time. Visit http://www.bidnetdirect.com/colorado for help with customer service or other questions. Please make sure to leave time for unexpected technical or other trouble. You are encouraged to submit a day early. Sometimes submittals take longer to load than expected; if you run out of time before you are finished with your entire upload CMC will not be presented with the response.

The only exception to the use of BidNet is that all questions from potential bidders must be submitted to bids@coloradomtn.edu. Those questions will then be responded to by addendum posted to BidNet.

Please do not directly contact any member of CMC's staff or faculty, or any member of the Selection Committee other than the Buyer listed in this document regarding this proposal. Any attempt to do so will result in your firm's disqualification at the discretion of the AVP of Business Services.

SCOPE OF PROJECT

Colorado Mountain College's Breckenridge Campus located at 107 Denison Placer Road, Breckenridge, CO 80424 is requesting quotes from qualified firms and/or individuals to provide professional cleaning services for the Breckenridge Campus.

SPECIFICATIONS

The Contractor shall provide all the necessary management, supervision, labor, transportation, tools, equipment and any other resources and materials necessary and required to perform custodial services. CMC will provide all cleaning products, toilet paper, hand towels, trash can liners, etc. that will be necessary for the facility.

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1. Work Schedule

A. Custodial services shall be provided five (5) days per week, Sunday through Thursday. General cleaning shall be performed between the hours of 4:00 p.m. and 10:00pm. Cleaning shall not interfere with instruction or other normal activities within the facilities. Classes are scheduled from 8:00 a.m. until 9:00 p.m. Monday through Thursday.

B. Holidays: CMC is closed for the Christmas holiday beginning Christmas Day through New Year's Day. The college is also closed on the following days:

- Independence Day
- Labor Day
- Memorial Day
- Thanksgiving (Wednesday through Friday)

2. Equipment and Supplies

A. All Contractor furnished equipment shall be engraved or otherwise permanently identified, so that ownership can be readily determined. All Contractor equipment shall be kept in good working order.

B. Contractor shall furnish and keep in good working order all necessary tools and equipment including, but not limited to, mops, brooms, buffers, ladders, hoses, vacuum cleaners, etc. CMC's Facilities Maintenance Manager, or designee, must approve all supplies and/or equipment prior to their use under the resulting agreement. Any non-complying equipment or supplies shall be changed out immediately at the request of the Facilities Maintenance Manager or designee. Custodial closets located within the facility may be used by the Contractor and shall be kept clean and free of debris and odor at all times. Supplies and equipment stored in any the janitorial custodial closets shall be stored in a neat and orderly manner and in such a way as to prevent injury to College staff, the public, or Contractor's employees. Contractor's on-site supervisor shall maintain an equipment inventory and a copy shall be given to the CMC facility maintenance manager or designee, upon request.

C. CMC will provide secure storage areas for all Contractor furnished equipment and supplies. Control of all equipment and supplies shall be the sole responsibility of the Contractor.

D. CMC has limited custodial equipment. An inventory can be taken with CMC staff upon award. CMC and vendor will coordinate what equipment can be purchased by CMC or needs to be provided by vendor.

3. Cleaning Activity Specifications

At a minimum, all custodial services must be provided and performed to meet or exceed the requirements of APPA's Level 2 cleaning (This standard is being provided to describe the level of cleanliness, not the mandatory staffing requirements). It is the Contractor's responsibility to determine the adequate staffing to meet the cleaning requirements. The cleaning activities are included in Exhibit A – Scope of Work.

4. Chemicals / Supplies

A. If not provided by CMC, the Contractor shall submit the list of chemicals by type and brand that they propose to use to the Facilities Maintenance Manager, or designee. No other chemicals of any brand or type may be used unless the Contractor has obtained written permission to change in accordance with the following procedure. CMC reserves the right to reject any brand or type and order the Contractor to substitute another product acceptable to CMC. The Contractor must have yearly training for all its employees on hazardous chemicals and provide signed documentation by the employee of such training to the College Facilities Manager or designee.

B. Awarded vendor will provide all cleaning supplies, materials, equipment and labor necessary for the completion of the services covered in the contract with the following exceptions to be supplied by the college according to our awarded purchasing agreements:

- Trash can liners / bags / sanitary napkin disposal bags
- Paper towels
- Toilet tissue
- Liquid hand soap
- Floor cleaner
- Floor Finish

The above products will be provided according to monthly consumption rates as established in purchasing history and recorded inventories. Excessive product consumption may result in a review of this contract.

C. The Contractor shall maintain an onsite copy of OSHA Form 20, Material Safety Data Sheet (MSDS), or equivalent forms, for all chemicals that will be present at each location and used in the performance of the contract. An additional copy shall be provided to the Facilities Maintenance Manager or his/her designee.

B. The MSDS shall be posted in all closets where cleaning chemicals are stored. The MSDS must be multilingual, to sufficiently accommodate non-English speaking employees, assigned by the Contractor to the building. The hazardous chemical list must be kept updated.

C. All hazardous materials must be properly labeled.

D. All chemicals used by the Contractor must have the manufacturer's quality control batch numbers included on the cases or containers.

E. Chemical Substitution Requests. Prior to substituting chemical products, the Contractor shall submit a written request to the Facilities Manager, or designee, for review and concurrence. The written request shall identify the product use, the brand name and the manufacturer's name along with a sample for onsite evaluation. If the alternate product is accepted for substitution, then the MSDS book and postings must be updated to reflect the change.

F. Prohibited Chemicals. No ammonia, powdered cleanser or any other type of corrosive or damaging chemical agents shall be used in the performance of the work requirements without the written concurrence of the Facilities Manager, or designee.

5. Task Performance Standards

A. **General Cleaning:** Cleaning in general is defined as the removal of dirt, soil, stains, liquids, trash, refuse and any other foreign material from an item, fixture, or area and may include the process of disinfecting, if required by CMC.

Standard: When properly cleaned, an area, fixture or item will be free of all dirt, soil, stains or other foreign material and will present a clean, safe, healthful, and pleasant appearance.

B. **Specific Elements of Routine Task Custodial Performance Standards:** The preceding tasks are general in nature and are not intended to eliminate any specific elements of the housekeeping routine. However, the specific elements of the housekeeping routine will be judged against the general task description and standard.

Standard: If during the course of cleaning and a process or chemical damages the intended surface to be cleaned or any other surface, the Contractor shall be responsible for the replacement of the damaged item or damaged area to its original condition prior to the damage.

C. **Sweeping:** Sweeping is defined as the removal of loose dirt, dust, debris and other foreign material through either manual or mechanized methods, as appropriate for the location and situation.

Standard: When properly completed, a swept area will be free of all loose dirt, dust, debris or other foreign material with no build up in corners, crevices, under or around furniture parts. All items moved to remove dirt will be returned to their original location.

D. **Wet Mopping:** Wet mopping is defined as the removal of built up dirt, soil, liquids or other foreign materials from a floor using a cotton or similar yarn type mop and sufficient neutral detergent and water solution or neutral disinfecting detergent and water solution. This will include rinsing if required or recommended by the detergent manufacturer.

Standard: When properly completed, a wet mopped floor will be free of all dirt, debris, soil, liquids or other foreign material. It will present a uniform appearance free of streaks, smudges, heel-marks or any other marks that can be reasonably removed through this cleaning method. All splash marks/spots on walls and furniture/fixtures must be removed upon the proper completion of the wet mopping task. All items moved to accomplish this task will be returned to their original positions.

E. **Damp Mopping:** Damp mopping is defined as the use of a cotton or similar yarn type mop which has been mechanically wrung/squeezed to remove excess solution for purpose of removing light soil, dirt, liquid or other foreign material from a floor which does not require the complete mopping of the area or the area is not soiled sufficiently to require wet mopping.

Standard: When properly completed, damp mopping will be held to the same quality standard as wet mopping.

F. **Spot Cleaning:** Spot cleaning is defined as the removal of dirt, soil, debris, liquids, stains or other foreign materials from floors, walls, furniture, fixtures or other areas which can be

accomplished by cleaning only the immediately affected area where cleaning the whole area would not be necessary. Spot cleaning may be accomplished by any of the methods contained herein and as dictated by the circumstances of the soiling.

Standard: When properly completed, spot cleaning will completely remove any evidence of the soiling which necessitated the cleaning and return the finish of the item/area affected to its pre-soiled condition without evidence of occurrence or cleaning.

G. **Vacuuming:** Vacuuming is defined as the mechanical removal of loose dust, dirt, soil, debris and other foreign material from carpeted floors and other items which lend themselves to this method of cleaning (Examples: couches, chairs, walls, curtains/drapes).

Standard: When properly vacuumed, there shall be no evidence of any dust or dirt or any other loose foreign material. All items moved during this process shall be returned to their original positions.

H. **Dusting:** Dusting is defined as the removal of laden airborne dirt, soil, lint, or other foreign material from furniture, fixtures, ledges, shelves, frames, walls and any other items which may accumulate airborne particles. Normal or low dusting is all levels up to and including six (6) feet in height. All high dusting will be all levels above six (6) feet high.

Standard: When properly dusted, an item will be free of any laden airborne materials, streaks, and smudges. Laden airborne matter will be removed by either mechanical, chemical or manual means except that devices that merely displace or redistribute the matter, such as feather dusters, will not be used, unless treated to attract and hold the matter. All items moved to accomplish this task will be returned to their original position.

I. **Glass/Window Cleaning:** Glass/Window cleaning is defined as the removal of dirt, soil, smudges, fingerprints and other foreign material from glass windows, doors, partitions, or any other items which may consist in whole or part of glass or similar material, including mirrors.

Standard: When properly cleaned, glass objects will be free of all dirt, soil, smudges, streaks, smears or any other substances that will interfere with the passage or reflection of light rays as may be applicable to the particular object. All excess spray/solution must be removed from any surrounding trim or surfaces. Any items moved to accomplish this task must be returned as close as possible to their original positions.

J. **Trash/Waste Removal:** Trash/Waste removal is defined as the collection and disposal of all materials that have been placed into appropriate containers dedicated for disposal. This service also includes the separation of identified recyclable materials and placement into an identified recycling container.

K. **Recycling:** All specified recyclable materials must be collected, maintaining separation into appropriate containers. Once collected, materials are to be moved to the proper designated locations for transportation.

Standard: When properly removed, the waste receptacles will be free of all waste and disposed materials. When any liner is used in a waste receptacle it shall be replaced if there is any evidence of soiling, tearing or other damage or contamination. When any receptacle has been

used for disposal of liquid or wet wastes the liner shall be replaced regardless of its age or appearance. If the liner leaked or otherwise allowed wastes to contact the receptacle, the receptacle will be cleaned and disinfected. Recyclable materials will be kept separated and placed into their appropriate containers.

L. **Metal Cleaning/Polishing:** Metal cleaning/polishing is defined as the removal of dirt, soil, fingerprints, smudges, streaks, watermarks, scale and other foreign material from metal surfaces and textures.

Standard: When properly cleaned/polished with an approved non-abrasive cleaner/polish, the metal surface will present a clean uniform appearance free from all dirt, soil, marks, smudges, streaks, scale, etc.

M. **Disinfecting:** Disinfecting is defined as the removal or neutralization of material containing or supporting the growth of bacterial/viral organisms capable of causing infection in humans if untreated, through the application of an approved disinfectant by either manual or mechanical methods.

Standard: When properly disinfected, surfaces shall be as free as possible of material containing living bacteria, viruses, or other contaminates capable of causing infections. Testing may be accomplished by the agency or through an independent testing facility.

N. **Woodwork Cleaning/Polishing:** Woodwork cleaning/polishing is defined as the treatment of wood furniture, fixtures, and walls with an approved wood cleaner, oil and/or polish to prevent the aging, cracking, and/or drying of wood items and to remove soil, stains, fingerprints and smudges.

Standard: When properly cleaned and polished, the wood will exhibit a high uniform sheen free of all dirt, soil, stains, or other foreign material that would detract from a clean and appealing appearance.

O. **Dispenser Service:** Dispenser service is defined as the checking, and refilling of all towel, toilet tissue, toilet seat covers, soap, air fresheners or any other dispensers which may be identified by CMC.

Standard: When properly serviced, dispensers will have an adequate, at least one (1) day, supply of dispensed product or will be identified as needing a follow-up check to insure that the dispenser does not remain empty for an extended period of time. At no time will additional supplies be left for patrons/clients/students/employees to install in the dispensers.

P. **White Board Cleaning:** White board cleaning shall include the erasure with an approved board erasure or soft cloth of all visible marks. Boards shall be conditioned with an approved product applied on a weekly basis per the board manufacturer's instructions or as needed, due to excessive use of the boards.

Standard: When the boards have been cleaned properly, there shall be no marker residue on the boards nor shall there be any visible marker or shadow of marker left on the boards. When conditioner is applied it shall be applied according the manufacturer's instructions.

6. Special Conditions

A. **Services and Frequency Schedule:** It shall be the responsibility of the Contractor to be familiar with good custodial procedures and practices and to perform the required services accordingly. The Contractor shall be familiar with the requirements of the various areas and shall have examined the premises and understands the conditions under which the Contractor will be obligated to perform. Supervisors shall provide a weekly checklist to ensure items have been completed. The cleaning requirements and frequency schedule are outlined under Cleaning Requirements.

B. Security: It is the responsibility of the Contractor to assure that all offices and buildings are secured upon completion of their work. If the Contractor's personnel is unable to activate the alarm or secure the building, they must contact the local facilities maintenance manager before leaving the facility. The contractor is also responsible for any keys that are issued to them or their staff. They will be responsible for any deposits required for said keys in accordance with CMC policy. If key are lost, the Contractor will be responsible for replacement of any keys and replacement of any locks necessary due to lost keys.

C. **Emergency Contact:** In case of an emergency at a campus location, the Contractor must provide a 24 hour, 7 day a week contact number with response time within one (1) hour after notification and staffing on- site within two (2) hours if required.

D. **Contractor Representative:** Prior to the start of contract performance, the contractor shall advise CMC, in writing, of the primary and alternate representative (including phone number) who will have management responsibility for the total contract effort to receive, act on and resolve problems of a contractual nature.

E. Contractor's Employees:

- The Contractor shall screen all employees and is required to conduct a pre-employment criminal background check on all employees prior to their assignment to this contract. Any falsification of application information or credentials or failure to make full disclosure of criminal history shall be grounds to remove and bar the contractor's employee from any and all CMCs facilities;

- All Contractors' employees while on duty at any CMC facility shall wear, in plain view, name tag or company identification, indicating their affiliation with the contracting firm.

- All employees shall be neatly attired at all times, and in a manner that will reflect credit both upon the Contractor and CMC.

- Persons employed by the contractor to perform services under this contract shall be legally authorized to work in the United States.

- When working in CMC facilities, the Contractor shall prohibit their employees from disturbing papers on desks, opening desk drawers or using any office equipment including telephones, computers, fax machines, copiers, etc.

- All CMC facilities are non-smoking buildings. Contractor employees are prohibited from smoking in all non- designated areas.

- Sleeping on the job is prohibited.

- Theft or aiding in the theft of any CMC or tenant's property by the contractor's employees is prohibited. The contractor shall be financially liable for all thefts by its employees.

- Use of any CMC or tenant's computer, telephone, fax, television, etc. equipment is prohibited.

- The contractor shall require their employees to comply with the instructions pertaining to conduct and other regulations called to the attention of the contractor by the Facilities Manager or designee.

- At the request of the Facilities Maintenance Manager, the contractor shall remove an employee from their work force that is found unacceptable or unsatisfactory by the CMC Facilities Maintenance Manager. It shall be the contractor's responsibility to find a suitable replacement for the removed employee;

- CMC may periodically request additional custodial personnel to perform services not covered by this specification. Normally notification to provide extra services will be given at least twenty-four (24) hours in advance. The cost for the additional personnel will be based rate quoted on Cost Sheet, the Schedule of Items and Prices.

F. Quality Control: The Contractor shall conduct walk-through inspections of the facilities at least monthly with CMC Facilities Maintenance Manager, or their designee. The Contractor shall, at all times, employ and maintain an adequate staff on the CMC premises for consistent and efficient performance of all services as specified in this Contract. CMC shall notify the Contractor of custodial tasks that are not being performed in a satisfactory manner, as specified in the Contract. In the event of such notification, the Contractor shall take all necessary steps to correct non-performance or unsatisfactory performance within twenty-four (24) hours

G. **Safety:** The Contractor shall submit for approval a plan for safety training within thirty (30) days of award. This program shall include the specific action that will be taken to train employees in:

- Safe work habits;

- Safe use of cleaning chemicals;

- Safe use of cleaning equipment;

- The use of equipment signs, in particular, wet floor signs, barriers, or other devices, to protect the building occupants or equipment;

- Recognizing hazardous or other materials that are not allowed for use in this contract;

- Contractor shall submit Material Safety Data Sheets (MSDS) to the CMC Safety Officer in advance for all materials being used by the Contractor on the premises of CMC; and

- In addition to the above, the Contractor is responsible for obeying all rules and regulations of any governing agency having jurisdiction.

H. **Security:** The Contractor is responsible for training its employees in the security requirements of CMC and is responsible for enforcing the security rules of CMC as they apply to its employees. In addition to any other security rules and regulations, the Contractor shall inform its employees of the following:

- No guns, knives, or other dangerous weapons are allowed on CMC premises.

- No dangerous drugs, or other prohibited substances, including alcohol, are allowed on premises. Contractor will not allow employees to work while under the influence of prohibited substances.

- The Contractor will be furnished keys to the facilities and loading dock gates as applicable and shall be held responsible for their use or misuse. All keys shall remain the property of CMC and shall not be duplicated by the Contractor or its employees. All keys shall be returned to the Facilities Maintenance Manager upon request. The Contractor will be liable for the cost of any keys not returned, for replacement keys, and for the cost of any re-keying of locks necessitated by loss of keys. The Contractor will be charged $50.00 for each key misplaced or lost.

- Keys shall not be left in doors or on service carts at any time.

- All exterior doors must remain as they are found when entering the building by the Contractor's employees.

- Failure to maintain a secure environment and set the security alarm (where applicable) will result in issuance of a complaint and possible cancellation of the Contract.

- Any cost incurred from a security service or local police for false alarms caused by failure of the Contractor to properly set the security alarm will be the responsibility of the Contractor.

- No one is allowed into the facility other than those individuals responsible for performing services.

I. **Waste Removal:** All trash collected by the Contractor must be removed via designated exit points to areas designated by the Facilities Manager or designee.

J. **CMC-furnished Storage Space:** The Contractor shall store its supplies, materials, and equipment in storage areas and custodial closets designated by the Facilities Manager or designee. The Contractor agrees to keep these areas neat and clean at all times in accordance with all applicable fire regulations. Also, all cleaning equipment shall be kept clean and in good repair at all times. Be aware that on-site storage is very limited.

K. **Reporting Needed Repairs:** The Contractor's employees will be required to actively seek out and report to their on-site supervisor, any needed repairs to the building, its furnishing, its fixtures and its mechanical equipment, etc. within the area covered by this Contract. Any item of a critical priority or an emergency nature will be reported upon discovery to the Facilities Manager.

L. **Supervisory Requirements:** The Contractor shall have a supervisor on-site directly in charge of the work that shall represent the Contractor and communicate with and coordinate the work with the Facilities Maintenance Manager or designee. The Contractor's Supervisor shall be approved by the Facilities Maintenance Manager or designee and shall not be replaced without prior consent of the same.

M. **Removal of Employees:** The Facilities Maintenance Manager, or designee, may request removal from the CMC premises any employee for cause, including but not limited to, poor or non-performance of work, theft, abusive language and behavior or improper attire. The Contractor shall immediately remove the employee from the premises upon receipt of such request to do so.

PROPOSAL CONTENT

The information provided herein is intended to assist Bidders with a proper response to this RFP. CMC believes that this RFP provides interested Bidders with sufficient information to submit proposals that meet minimum requirements. However, the RFP is not intended to limit a proposal's content or to exclude any relevant or essential data. Bidders are encouraged to include additional information that will substantiate their service capabilities, product quality, and commitment to support your product or service. Any exceptions or alternate offerings to this request must be communicated. CMC reserves the sole right to determine what is considered to be "equivalent" or "equal". CMC also reserves the right to request samples for testing and evaluation.

Additionally, CMC recognizes you as the expert in this industry and we appreciate ideas that may improve the design or implementation of our project. Please submit your bid to the specifications provided and include information or ideas you may have that CMC should consider to improve our project. Our selection committee will carefully review these ideas and we will contact you with questions.

Please upload your submittal to BidNet in one single PDF file (this may require you to convert files and then combine them into the one PDF file) , including the following in this order:

1) Name, title, and contact information of the official representative submitting your proposal.
2) Legal company name, address, phone, and email.

3) RFP number and name as it appears on this document.
4) Number of years in business and brief description of your company's experience and qualifications. Please include resumes of professionals that you expect to have primary responsibility if you win this award if possible.
5) Your bid. Please include a monthly rate for standard clean but also a price per hour for "extra cleans" or "special cleans".
6) Other information or supporting documentation that you think our selection committee would benefit from reviewing in the decision process. Please submit as little as possible but as much as necessary.
7) Minimum of three references for work completed within the last three (3) years that is same or similar in nature. Preference is that at least one (1) reference is a public entity client. All references shall include name, title, address, telephone number, and e-mail address for the contact.
8) Insurance certificate (For evidence of sample coverage only. Final compliant certificate to be collected from successful bidder.).

Section II: Timeline

a. **JOB WALKTHROUGH.** There will be a **mandatory** walkthrough. See timeline below. Please note: The walkthrough will gather in the lobby of the Breckenridge Campus Building and depart promptly as scheduled. Any contractor not present when the initial group leaves may not join the walkthrough.

B. **TIMELINE MODIFICATION.** CMC reserves the right to modify this timeline at any time. Any changes will be posted to the CMC Purchasing Department's website as soon as the information is available. All times are Mountain.

TIMELINE	DATE	TIME
Issue date	**October 5, 2026**	**4:00 p.m.**
Mandatory Pre-Proposal Walkthrough	**October 12, 2026**	**1:00 p.m.**
Questions and Clarifications Due (send to bids@coloradomtn.edu)	**October 19, 2026**	**2:00 p.m.**
Questions Answered	**October 26, 2026**	**4:00 p.m.**
Request for Proposals (RFP) Due http://www.bidnetdirect.com/colorado	**November 2, 2026**	**2:00 p.m.**
Short List of Vendors Announced http://www.bidnetdirect.com/colorado and https://coloradomtn.edu/contact-departments/purchasing/bids-rfp-rfi-rfq/	**N/A**	**4:00 p.m.**
Candidate Interview (if necessary – save the date)	**N/A**	**TBD**
Target Award Date (Subject to Change) http://www.bidnetdirect.com/colorado and https://coloradomtn.edu/contact-departments/purchasing/bids-rfp-rfi-rfq/	**November 13, 2026**	**4:00 p.m.**

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Section III: Instructions to Bidders

a. Bidders are encouraged to attend all job walkthroughs. Walkthroughs that are mandatory must have your firm name on the official sign-in sheet distributed at the walkthrough to be eligible to bid. This process is expected to be competitive with numerous vendors participating. CMC endeavors to provide a uniform distribution of information to vendors and conduct a fair selection process. We ask that you please follow these instructions carefully. Any submittal that does not meet the requirements set forth in this document and any addenda will not be considered by the Selection Committee.

b. Visit the Purchasing Department's website at www.coloradomtn.edu/purchasing for additional information on doing business with CMC.

c. Bidders should carefully read the information contained herein, and in any addenda, and submit a complete proposal to all requirements and questions as directed.

d. Questions regarding this RFP should be submitted via email to bids@coloradomtn.edu. CMC will attempt to answer all relevant questions submitted to this email address prior to the question deadline in the timeline above. All such addenda issued by CMC prior to the time that proposals are received shall be considered part of the RFP. It shall be the Bidder's responsibility to view all documents posted at BidNet. Inquiries seeking information that is already available from BidNet. Only those inquiries that CMC replies to which are made by formal written addenda shall be binding. CMC shall not be bound by any oral changes, clarifications, or representations made by CMC employees unless they are provided in a written addendum to this RFP.

e. Once you've uploaded your response to BidNet per the instructions in this document the RFP will be governed by the established timeline. CMC staff cannot see who or how many responses have been submitted to BidNet prior to the closing date so we are unable to confirm receipt. However, you may assume your upload was successful if BidNet accepts the document.

f. Along with your RFP submit a certificate of liability insurance per the attached requirements for evidence only. If your proposal is successful and a contract awarded, a compliant certificate of insurance will be required with all endorsements at that time.

g. CMC makes no guarantee that an award will be made as a result of this RFP, and reserves the right to accept or reject any or all proposals, waive any formalities or technical inconsistencies, or delete any item/requirements from this RFP or resulting contract when deemed to be in CMC's best interest.

h. Representations made within the proposal will be binding on Bidder. Failure to comply with the requirements contained in this RFP will result in the rejection of your proposal.

i. Bidder recognizes and understands that any costs incurred by the Bidder from submitting a response to this RFP are the responsibility of the bidder.

Section IV: Selection Criteria

The Selection Committee for this project will evaluate proposals to identify the best value for CMC and all proposals shall be evaluated based on the requirements set forth in this RFP, which may include, but is not necessarily limited to, the consideration of such factors or criteria as: inspection, testing, references, quality, price, workmanship, delivery, functionality, and suitability for a particular purpose. Prior to the award of a contract, the Purchasing Department may contact a Bidder to: clarify any patent or latent ambiguities in a Proposal; or, to clarify that a Bidder clearly understands the requirements of this RFP and that a submitted Proposal conforms to the requirements of this RFP.

Specifically, the Selection Committee may select the successful Bidder based on the following criteria in no order of importance:

a. Overall quality of response and services/products proposed
b. Company qualifications, experience and demonstration of technical and management competence
c. Pricing
d. Warranties
e. References and reputation
f. Environmental policy and "Green" initiatives, if applicable
g. Service capability including evaluation of past performance and number and scope of any conditions included in the proposal

Note: Criteria may be modified in subsequent addenda. CMC is not bound to accept the lowest priced proposal if that proposal is not the best value for CMC in the sole discretion of the CMC Selection Committee. Submission of a proposal indicates Bidder's acceptance of the evaluation technique and recognition that some subjective judgments must be made by CMC during the selection process.

Section V: RFP Terms & Conditions

SUBMITTAL INSTRUCTIONS.

All submittals must adhere to the instructions provided above to be considered by the Selection Committee.

PROPRIETARY INFORMATION.

It is understood that CMC is a public institution and, as such, is subject to the Colorado Open Records Act, CRS §§ 24-72-101 et. seq. ("CORA"). Any information uploaded to BidNet or otherwise submitted to CMC will become a public record and subject to inspection following the final selection of a bidder and the award of a contract. Bid tabulations and results will be posted to BidNet and the CMC external website. Except as otherwise agreed prior to the award or finalization of any vendor transaction, College shall provide upon request by any third party all information pertaining to such transaction which must be disclosed pursuant to CORA, and CMC's obligations under CORA supersede its obligations under any agreement, contract, purchase order or negotiated transaction. If you object to the disclosure of any confidential or privileged information as such is defined in CORA, any such pages must be marked confidential and submitted as outlined herein. If you fail to mark the documents confidential and fail to include the explanation, any objection to the release of any information will be deemed waived by the College. Please note that your objection will be considered but is not binding on the College. The

College is required to make a determination under CORA, and may only withhold documents that are confidential under the law. If the College releases documents marked as confidential in compliance with CORA, the Bidder waives any claims for liability or damages.

To avoid disclosure of trade secrets, privileged information, or confidential commercial, financial, geological, or geophysical data ("Confidential Information"), the Bidder must clearly mark all Confidential Information as such and provide a written, detailed justification with its proposal of the protected nature of the Confidential Information under CORA. This justification must address, at a minimum, the specific competitive harm that may result from any disclosure, the intrinsic value of the Confidential Information to the Bidder, and any safeguards used to protect the Confidential Information from disclosure. By submitting a proposal, the firm agrees to hold the College harmless from any claim arising from the release of Confidential Information not clearly marked as such by the Bidder or lacking written, detailed justification as supported by CORA.

BINDING EFFECT OF SUBMITTED PROPOSALS.

Unless otherwise specified, all timely submitted Proposals shall be binding upon the submitting Bidder for a period of not less than sixty (60) calendar days following the Proposal due date. The CMC Purchasing Department may request a Bidder to extend this period of time if necessary, to complete the solicitation and contract award process.

REJECTION OF PROPOSALS OR CANCELLATIO NOF REQUEST FOR PROPOSALS.

CMC reserves the right to reject, in whole or in part, any timely submitted Proposal that fails to comply with the material terms and conditions of this RFP; or, is otherwise not in the best interests of CMC or fair competition. CMC reserves the right to cancel this RFP, in whole or in part, at any time, if it is in the best interest of CMC or fair competition.

WITHDRAW OF PROPOSAL AND ERRORS.

You may withdraw your proposal in writing at any time prior to the date and time set for award. If a Bidder claims that it has made an error in its Proposal, then clear and convincing written proof of that error must be submitted to the CMC Purchasing Department before that Proposal may be withdrawn. Any error in a Proposal that is not withdrawn prior to the award of a contract shall not relieve the submitting Bidder from any obligation to provide the goods or services to be acquired through this RFP at the prices stated it its Proposal.

DISCUSSIONS/NEGOTIATIONS.

CMC reserves the right to contact any Bidder for clarification of information submitted; CMC reserves the right to conduct discussions with Bidders, to accept or not accept revisions of Proposals, and to negotiate any point in the proposal or the subsequent contract at the sole discretion of the Director of Purchasing & Contracts.

AWARD.

Awards shall be made to any or all responsible Bidders whose submittals are determined to be advantageous to CMC based on the evaluation factors described above. Price, although a consideration, will not be the sole determining factor. After discussions have been held and any optional pre-award presentations made, the Selection Committee may request all Bidders in the competitive range to make a "Best and Final Offer". If such are requested by the Selection Committee, then the date will be set in writing by the CMC Purchasing Department for submission. Offers in the competitive

range will not, however, be allowed to make comprehensive Proposal revisions (i.e. a complete rewrite will not be allowed).

PRE-AWARD PRESENTATIONS.

The College reserves the right to require presentations from the highest-ranking Bidders, in which they may be asked to provide additional information and answer questions from the Selection Committee.

CONTRACT.

The successful Bidder is expected to enter into a standard contract with CMC that includes standard terms and conditions. CMC may choose to add additional terms to this contract. The contract shall be construed in accordance with the laws of the State of Colorado. In the event any dispute arises hereunder, the venue for any legal proceedings shall be in Garfield County, Colorado, and vendor hereby submits and agrees to the jurisdiction of the courts therein. Additionally, this RFP and the winning Proposal will become attachments to that agreement or be incorporated by reference. If the selected Bidder makes exception or requests changes to this RFP or the standard agreement after the deadline to submit Proposals has passed, and that request results in protracted contract negotiations and probable delay in the commencement of work, then CMC reserves the right to cease contract negotiations and exercise its right to offer the contract to the next highest ranked Bidder.

INDEMNIFICATION.

Successful Bidders shall indemnify and save CMC harmless from any and all claims, demands, suits, and actions which may arise from errors or omissions caused by the Bidder in conjunction with its contractual obligations including, but not limited to, obligations for the preparation of any and all documents required by CMC in conjunction therewith, and shall defend all suits, in the name of CMC when applicable, and shall pay all costs and judgments which may issue thereon.

INSURANCE.

Successful Bidders shall have their insurance company send the CMC Department of Risk Management a certificate of liability insurance compliant with the insurance requirements attached hereto.

PAYMENT AND PERFORMANCE BOND.

CMC requires payment and performance bonds for all construction projects greater than $50,000. Please price the bonds separately when you submit your response.

WORKERS WITHOUT AUTHORIZATION.

By submitting a proposal, a Bidder certifies pursuant to C.R.S. § 8-17.5-102(1) that, at the time of proposal submission, it does not knowingly employ or contract with a worker without authorization and that the contractor has participated or attempted to participate in the Basic Pilot Program that is administered by the United States Department of Homeland Security in order to verify that it does not employ any worker without authorization.

LIMITATION OF MULTIPLE-FISCAL YEAR OBLIGATIONS.

All financial obligations of CMC under a contract resulting from this proposal subsequent to the fiscal year in which signed are contingent upon funds for this purpose being appropriated, budgeted, and otherwise made available by the CMC Board of Trustees. This contract shall not be deemed to create

any multiple-fiscal year direct or indirect debt or other financial obligation whatsoever for purposes of Section 20(4) (b) of the State Constitution (Amendment 1).

EXCEPTIONS TO RFP.

Each Proposal submitted in response to this RFP shall list any deviation(s), exception(s), or variation(s) to or from: the terms and conditions of this RFP, the terms and conditions of any attachment(s) to this RFP, the terms and conditions of any addendum to this RFP, and, the terms and conditions of the proposed contract. The section of a Proposal containing any such deviation(s), exception(s), or variation(s) shall be clearly labeled "Exceptions to RFP". The failure of a Bidder to note a deviation, make an exception, or list a variation to the terms and conditions of this RFP, any attachment(s) or addenda to this RFP, or the terms and conditions of the proposed contract shall be deemed an express waiver by that Proposer of such deviation, exception, or variation.

CONTRACT PRODUCTS – OWNERSHIP RIGHTS.

All products, written or otherwise, produced as a result of any contract awarded under this RFP shall be the sole property of CMC unless otherwise agreed to in writing by the parties. Any exceptions must be outlined in detail. Unsupported exceptions to this requirement may serve as cause to reject a Proposal. The purchase of licenses for use of a Bidder's software shall not be interpreted to mean the purchase of the actual application or software. Ownership of the specific application and software selected under a RFP shall remain with the selected bidder.

Section VI: Warranties, Representations and Acknowledgements of Bidder

a. By submitting a proposal, Bidder acknowledges and agrees that (1) this RFP is a solicitation for proposal and is not a contract or an offer to contract and (2) the submission of a proposal by Bidder in response to this RFP will not create a contract between CMC and Bidder.

b. By submitting a proposal, Bidder offers and agrees to furnish to CMC the products and/or services described in its proposal, at the prices quoted in the proposal, and to comply with all terms, conditions, and requirements set forth in the RFP documents and contained herein.

c. By submitting a proposal, Bidder represents and warrants that (1) Bidder is a reputable company regularly engaged in providing products and/or services necessary to meet the terms, conditions, and requirements of the RFP; (2) Bidder has the necessary experience, knowledge, abilities, skills, and resources to satisfactorily perform the terms, conditions and requirements of the RFP; (3) Bidder is aware of, is fully informed about, and is in full compliance with all applicable federal, state, and local laws, rules, regulations, and ordinances; (4) Bidder understands the requirements and specifications set forth in this RFP and the terms and conditions set forth; and (5) all statements, information, and representations prepared and submitted in response to this RFP are current, complete, true, and accurate. Bidder acknowledges that CMC will rely on such statements, information, and representations in selecting the successful Bidder. If selected by CMC as the successful Bidder, Bidder will notify CMC immediately of any material change in any matters with regard to which Bidder has made a statement or representation or provided information.

d. By submitting a proposal, Bidder agrees to be in compliance with all federal laws and regulations pertaining to Equal Employment Opportunities and Affirmative Action.

EXHIBIT A

Cleaning contract - Scope of work			
	Daily	**Weekly**	**Monthly**
Entrances and lobby areas			
remove garbage from receptacles, replace lining, clean the receptacle	X		
Vacuum carpet and mats	X		
clean both sides of glass doors and adjacent windows, clean frames	X		
Clean the permanent or hanging directory or signage	X		
clean walls, light switches and dividing glass	X		
dust mop / wet mop hard surface floors	X		
dust off all furniture and accessories	X		
dust off all walls, doors, window frames larger than six feet			X
clean door jambs and polishing thresholds		X	
HVAC anti-dust vent grills			X
polish/polish hard surface floors		X	
dust/vacuum window covers			X
vacuum upholstered furniture		X	
cleaning phones, disinfecting headphones	X		
General office areas			

remove garbage, replace the lining and stain the clean container	X		
vacuum carpets from wall to wall	X		
dust mop / wet mop hard surface floors	X		
dust off all accessible sockets	X		
dust off all furniture and accessories, desks are cleaned only if they are clean	X		
dust off all walls, light switches, window frames over six feet	X		
detect clean walls, light switches, doors and window frames	X		
dust/vacuum window covers			X
HVAC anti-dust vent grills			X
vacuum upholstered furniture		X	
Corridors			
vacuuming carpeted surfaces	X		
clean carpets when needed	X		
clean and polish drinking fountains, coffee machine area	X		
dust and stains from clean walls, light switches, door jambs and window frames	X		
baseboards clean of dust and stains	X		

HVAC anti-dust vent grills			X
Bathrooms			
remove garbage, replace the lining and stain the clean container	X		
sweeping, mopping with germicidal disinfectant	X		
replenish paper products, hand soap and feminine napkins	X		
Clean and disinfect all toilets, urinals, and adjacent wall surfaces.	X		
clean and disinfect walls and doors	X		
clean all mirrors, sinks and countertops	X		
clean and disinfect partitions, shelves, accessories/dispensers	X		
HVAC anti-dust vent grills	X		
clean, disinfect and polish all shiny metal work	X		
pour water into floor drains, add enzymes as needed			X
clean and disinfect shower areas where appropriate	X		
Cafeteria and rest areas			
remove trash, replace bags, and stain clean containers	X		
dust mop/ wet mop on all hard surface floors	X		

vacuum carpeted areas, clean stains	X		
furniture powder, accessories	X		
clean and disinfect countertops, cabinets, tables and chairs	X		
clean the bases of the tables and the legs of the chairs	X		
detect clean walls, light switches and doors	X		
dust vending machines and cleaning	X		
Ladder cube			
police for debris and discard	X		
sweeping and mopping stairs and landings	X		
dusting, cleaning and disinfecting handrails	X		
dust pipes, signage and high areas		X	
Special SIM rooms			
remove trash, replace siding, and stain clean containers	X		
clean and disinfect countertops, cabinets and tables	X		
dust mop / wet mop hard surface floors	X		
Clean and disinfect walls, light switches, lockers, and shelf surfaces when appropriate	X		

EXHIBIT A

Culinary cuisine			
remove garbage, replace the lining and stain the clean container	X		
dust sweep/wet mop hard surface floors	X		
replenish paper products/hand soap	As needed	X	
Deep and clean floors			X
Classroom			
Mopping / sweeping / vacuuming floors	X		
clean and disinfect tables/workstations/countertops	X		
clean whiteboards / smart carts	X		
remove trash / replace the lining and stain the clean receptacle	X		
detect clean walls, light switches and doors	X		
replenish paper products/hand soap	As needed		
clean sills/blinds and lighting fixtures		X	
Conference room			

EXHIBIT A

dust mop / wet mop	X		
vacuum floors	X		
remove any garbage	X		

Colorado Mountain College Insurance Requirements

All vendors/companies/groups (herein referred to as "Vendor") providing services to or doing business with Colorado Mountain College, a Local College District ("CMC") must maintain the following types of insurance with minimum limits of liability as stated below for the duration of the contract. Please send these requirements to your insurance agent or broker and have them provide a compliant Certificate of Liability Insurance (preferably a standard Acord form) to CMC.

Certificates of Liability Insurance evidencing the coverage, limits and endorsements outlined below must be issued by the insurance agent or carrier at least (5) working days prior to contract execution or work commencing.

Note: Additional coverage may be required dependent upon the nature and scope of services provided and/or work performed. Requests for exceptions to these requirements must be discussed with and approved by CMC Risk Management ***prior*** to contract execution or work commencing.

Coverage	**Minimum Limit**
Commercial General Liability (CGL)	**$1,000,000 Occurrence/$2,000,000 aggregate** **$2,000,000 Products / Completed Operations aggregate**

The Vendor shall maintain CGL coverage for itself and all additional insureds for the duration of the services performed for CMC and maintain Completed Operations coverage required herein in full force and effect until the expiration of any applicable statutes of limitations. Colorado Mountain College, a Local College District and its affiliates shall be listed as an additional insured. The insurance shall include a provision that such insurance afforded by the policy for the benefit of the additional insureds shall be primary and non-contributory to any insurance or self-insurance maintained by the additional insureds. In addition, a Waiver of Subrogation shall be issued in favor of CMC.

Commercial Crime Including Third Party Coverage **$100,000 Minimum Limit**

Vendor shall maintain commercial crime insurance or fidelity bond, including employee dishonesty and third party (client) coverage, with limits of not less than $100,000. Colorado Mountain College, a Local College District shall be named Loss Payee.

Automobile Liability

Vendor shall ensure automobile liability is in force as required by state law for all vehicles used in performing services under this agreement. Proof of coverage may be required upon request.

Workers' Compensation **Statutory Limits ($100,000/$500,000/$100,000)**

Vendor shall maintain the coverage required by the state for Workers' Compensation / Employer's Liability insurance. The policy shall contain a Waiver of Subrogation in favor of CMC. If Vendor is not required by the state to carry Workers' Compensation / Employer's Liability insurance and officers have rejected coverage, Vendor is required to complete a Declaration of Independent Contractor Status form.

Additional Provisions

CMC requires insurance carriers be licensed to conduct business in the State of Colorado and a minimum A.M. Best Rating of A-.

Vendor shall require in all Vendor's subcontracts, if any, the same limits and coverage required herein.

Each insurance policy shall state that CMC will receive thirty (30) days prior written notice of any cancellation, non-renewal, or material alteration of the Vendor's insurance policies. Renewal certificates should be automatically sent to CMC.

Certificate Holder:

Colorado Mountain College, a Local College District
Risk Management Department
802 Grand Avenue
Glenwood Springs, CO 81601

Questions regarding CMC's Insurance Requirements should be directed to:
RiskManagement@coloradomtn.edu

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